

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Faria Tasnim	Team: Squad #05	CCRB Case #: 202001006	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 01/24/2020 7:50 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 3/10/2022	Precinct: 75
Date/Time CV Reported Fri, 01/24/2020 7:48 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/06/2020 11:10 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Vitale	23951	954409	075 PCT
2. POM Anthony Waite	09649	961434	075 PCT
3. LT Dion Hinds	00000	936771	075 PCT
4. POM Sean Keegan	12338	954994	075 PCT
5. Officers			075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Vitale	Abuse: Police Officer Michael Vitale stopped § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Anthony Waite	Abuse: Police Officer Anthony Waite stopped § 87(2)(b)	B . Alleged Victim Uncooperative
C . LT Dion Hinds	Abuse: Lieutenant Dion Hinds stopped § 87(2)(b)	C . Alleged Victim Uncooperative
D . POM Anthony Waite	Force: Police Officer Anthony Waite hit § 87(2)(b) against a vehicle.	D . Alleged Victim Uncooperative
E . POM Michael Vitale	Abuse: Police Officer Michael Vitale searched § 87(2)(b)	E . Alleged Victim Uncooperative
F . POM Anthony Waite	Abuse: Police Officer Anthony Waite searched § 87(2)(b)	F . Alleged Victim Uncooperative
G . LT Dion Hinds	Abuse: Lieutenant Dion Hinds searched § 87(2)(b)	G . Alleged Victim Uncooperative
H . POM Michael Vitale	Abuse: Police Officer Michael Vitale threatened § 87(2)(b) with the use of force.	H . Alleged Victim Uncooperative
I . POM Anthony Waite	Discourtesy: Police Officer Anthony Waite spoke discourteously to § 87(2)(b)	I . Alleged Victim Uncooperative
J . POM Michael Vitale	Force: Police Officer Michael Vitale used physical force against § 87(2)(b)	J . Alleged Victim Uncooperative
K . POM Anthony Waite	Force: Police Officer Anthony Waite used physical force against § 87(2)(b)	K . Alleged Victim Uncooperative
L . LT Dion Hinds	Force: Lieutenant Dion Hinds used physical force against § 87(2)(b)	L . Alleged Victim Uncooperative
M . POM Sean Keegan	Force: Police Officer Sean Keegan used physical force against § 87(2)(b)	M . Alleged Victim Uncooperative
N . Officers	Force: Officers used physical force against § 87(2)(b)	N . Alleged Victim Uncooperative

Truncation Case Summary

Search IAs: 10

Created by: Caroline Hanna on 02/06/2020

Remarks Performed a NYCMap search. Determined that the incident occurred in the confines of the 75th Precinct, in close proximity to the confines of the 73rd Precinct.

Created by: Caroline Hanna on 02/06/2020

Remarks Performed a BADS search yielded Arrest # § 87(2)(b), § 87(2)(b) dated January 24, 2020 for § 87(2)(b) § 87(2)(a) 160.50 The arresting officer was Police Officer Anthony Vitale, tax # 954409, at the 75th Precinct.

Created by: Caroline Hanna on 02/06/2020

Remarks Performed a BADS search. NYSID # § 87(2)(b) - printed § 87(2)(b)'s arrest history for the case file. According to Arrest # § 87(2)(b) dated February 19, 2012, § 87(2)(b)'s last known address was § 87(2)(b), Queens, 11369.

Created by: Faria Tasnim on 02/11/2020

Remarks Performed a OCA search. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(a) 160.50

Created by: Faria Tasnim on 02/12/2020

Remarks Performed a Lexis Nexis search. --Lists the most recent NY address and phone number for § 87(2)(b) as the following: § 87(2)(b) Brooklyn, NY 11207 § 87(2)(b) --Lists the following email addresses: § 87(2)(b) and § 87(2)(b)

Created by: Faria Tasnim on 02/27/2020

Remarks Performed a DOC for NYC search. § 87(2)(b) and § 87(2)(b) are not currently incarcerated.

Created by: Faria Tasnim on 04/13/2020

Remarks Performed a DOC for NYC search. § 87(2)(b) is not currently incarcerated.

Created by: Faria Tasnim on 04/13/2020

Remarks Performed a DOC for NYS search. § 87(2)(b) is not currently incarcerated.

Created by: Faria Tasnim on 04/13/2020

Remarks Performed a DOC for NYC search. § 87(2)(b) is not currently incarcerated.

Created by: Faria Tasnim on 04/13/2020

Remarks Performed a DOC for NYS search. § 87(2)(b) is not currently incarcerated.

Contact complainant/victim IAs: 19

Contact: Comp/Witness § 87(2)(b)

Created by: Faria Tasnim on 02/11/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number provided in IAB referral, 1]. Call immediately went to a non-personalized voicemail box and left a message explaining that IAB notified us of his complaint and I was calling to see if he wanted to pursue a CCRB complaint. Requested a call back.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 02/12/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number found on Lexis, #1]. The call went to a non-personalized voicemailbox. I left a message stating that I was calling because I was notified of an incident involving police misconduct that occurred on Jan. 24 and I wanted to see whether § 87(2)(b) wanted to pursue a complaint. Requested a callback.

Contact: Comp/Witness § 87(2)(b)

Created by: Faria Tasnim on 02/14/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number provided in IAB referral, 2]. Call immediately went to a non-personalized voicemail box and left a message explaining that IAB notified us of his complaint and I was calling to see if he wanted to pursue a CCRB complaint. Requested a call back.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 02/14/2020

CCRB Case # 202001006

Remarks Called § 87(2)(b) at § 87(2)(b) [number found on Lexis, #2]. The call went to a non-personalized voicemailbox. I left a message stating that I was calling because I was notified of an incident involving police misconduct that occurred on Jan. 24 and I wanted to see whether § 87(2)(b) wanted to pursue a complaint. Requested a callback.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 02/18/2020

Remarks Message left by § 87(2)(b) stating that he was returning my call. -- § 87(2)(b) called from § 87(2)(b)

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 02/18/2020

Remarks Called § 87(2)(b) [1] and spoke to § 87(2)(b) who stated that he was § 87(2)(b)'s cousin. § 87(2)(b) informed that § 87(2)(b) would be available at this number after 7-8 p.m. and that otherwise, he may be available around 1 p.m. at § 87(2)(b)

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 02/18/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number found on Lexis, #3]. The call went to a non-personalized voicemailbox. I left a message stating that I was calling because I was notified of an incident involving police misconduct that occurred on Jan. 24 and I wanted to see whether § 87(2)(b) wanted to pursue a complaint. Requested a callback. ***Note: § 87(2)(b)'s cousin, § 87(2)(b) confirmed that...

Contact: Comp/Witness § 87(2)(b)

Created by: Faria Tasnim on 02/18/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number provided in IAB referral, 3]. Call immediately went to a non-personalized voicemail box and left a message explaining that IAB notified us of his complaint and I was calling to see if he wanted to pursue a CCRB complaint. Requested a call back.

Contact: Comp/Witness § 87(2)(b)

Created by: Faria Tasnim on 02/20/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number provided in IAB referral, 4]. Call immediately went to a non-personalized voicemail box and left a message explaining that IAB notified us of his complaint and I was calling to see if he wanted to pursue a CCRB complaint. Requested a call back.

Contact: Comp/Witness § 87(2)(b)

Created by: Faria Tasnim on 02/24/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number provided in IAB referral, 5]. Call immediately went to a non-personalized voicemail box and left a message explaining that IAB notified us of his complaint and I was calling to see if he wanted to pursue a CCRB complaint. Requested a call back.

Contact: Comp/Witness § 87(2)(b)

Created by: Faria Tasnim on 02/27/2020

Remarks Called § 87(2)(b) at § 87(2)(b) [number provided in IAB referral, 6]. Call immediately went to a non-personalized voicemail box and left a message explaining that IAB notified us of his complaint and I was calling to see if he wanted to pursue a CCRB complaint. Also explained that complaint may close without a full investigation if I don't hear from him soon and requested a call back.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 03/04/2020

Remarks Called § 87(2)(b) at § 87(2)(b) (#3). § 87(2)(b) provided his contact information and a phone statement, and scheduled an in-person interview for 3/10 at 12 pm. § 87(2)(b) asked that I send an email reminder the day before the interview.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 03/11/2020

Remarks Called § 87(2)(b) at § 87(2)(b) (1). Reached a non-personalized voicemail box and a left a message stating that I was calling to follow up on § 87(2)(b)'s missed appointment

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 03/27/2020

Remarks Called § 87(2)(b) at § 87(2)(b) (2). Reached a non-personalized voicemail box and a left a

message stating that I was calling to follow up on § 87(2)(b)'s missed appointment. Briefly explained that we would reschedule and do a phone interview and requested a callback.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 04/01/2020

Remarks Delayed IA: on 3/31, called § 87(2)(b) at § 87(2)(b) (3). Reached a non-personalized voicemail box and a left a message stating that I was calling to follow up on § 87(2)(b)'s missed appointment. Requested a call back.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 04/03/2020

Remarks Delayed IA: on 4/2 called § 87(2)(b) at § 87(2)(b) (4). It appeared that someone picked up the call and immediately disconnected it.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 04/03/2020

Remarks Delayed IA: On 4/2 called § 87(2)(b) at § 87(2)(b) (4) again after the call appeared to be disconnected the first time (IA 71). No answer, the call went to a non-personalized voicemail box. I began to leave a message before the voicemailbox stopped recording and the call was disengaged.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 04/07/2020

Remarks Called § 87(2)(b) at § 87(2)(b) (5). Reached a non-personalized voicemail box and a left a message stating that I was calling to follow up on § 87(2)(b)'s missed appointment. Requested a call back.

Contact: Victim § 87(2)(b)

Created by: Faria Tasnim on 04/10/2020

Remarks Called § 87(2)(b) at § 87(2)(b) (6). Reached a non-personalized voicemail box and a left a message stating that I was calling to follow up on § 87(2)(b)'s missed appointment. Explained that the investigation will close without a full investigation if I do not hear back from him soon. Requested a call back.

Letters/Correspondence IAs: 7

Document List:

1st please call to c/v/w letter to Comp/Witness § 87(2)(b) Created 02-11-2020 by Faria Tasnim

1st please call to c/v/w letter to Victim § 87(2)(b) Created 02-13-2020 by Faria Tasnim

Final please call to c/v/w letter to Comp/Witness § 87(2)(b) Created 02-20-2020 by Faria Tasnim

Free content letter to c/v/w to Victim § 87(2)(b) Created 03-09-2020 by Faria Tasnim

C/v missed appt. letter to Victim § 87(2)(b) Created 03-10-2020 by Faria Tasnim

1st please call to c/v/w letter to Victim § 87(2)(b) Created 03-27-2020 by Faria Tasnim

Final please call to c/v/w letter to Victim § 87(2)(b) Created 04-03-2020 by Faria Tasnim

Letters/Correspondence IA created by: Faria Tasnim on 02/11/2020

Remarks Sent § 87(2)(b) first please call letter [1].

Letters/Correspondence IA created by: Faria Tasnim on 02/13/2020

Remarks Mailed and emailed § 87(2)(b) a first please-call letter.

Letters/Correspondence IA created by: Faria Tasnim on 02/20/2020

Remarks Sent final please call letter to § 87(2)(b) [2].

Letters/Correspondence IA created by: Faria Tasnim on 03/09/2020

Remarks Emailed § 87(2)(b) a reminder of his appointment tomorrow, 3/10/20 at 12 p.m. as discussed during his phone statement.

Letters/Correspondence IA created by: Faria Tasnim on 03/10/2020

Remarks Sent missed appointment letter and email to § 87(2)(b) [1].

Letters/Correspondence IA created by: Faria Tasnim on 03/27/2020

Remarks Emailed § 87(2)(b) 1st please call letter [2nd letter sent after missed appointment].

Letters/Correspondence IA created by: Faria Tasnim on 04/03/2020

Remarks Emailed § 87(2)(b) final please call letter [2nd letter sent after missed appointment].

Civilian Interview Scheduled IAs: 1

Created by: Faria Tasnim on 03/04/2020

Remarks § 87(2)(b) is scheduled to be interviewed on 03/10/2020 at 12:00PM Interview Type: In person
Interview Location: CCRB

Civilian Interview Missed IAs: 1

Created by: Faria Tasnim on 03/10/2020

Remarks § 87(2)(b) did not appear for his interview and did not notify ahead of time.

Truncation Report Remarks:

On January 24, 2020, § 87(2)(b) filed this complaint by phone with IAB, generating original log # 20-2560. § 87(2)(b) was a witness to the incident, and § 87(2)(b) was the alleged victim. The CCRB received this complaint on February 6, 2020.

§ 87(2)(g)

Between February 11 and February 27, the undersigned called § 87(2)(b) six times and mailed him two letters. § 87(2)(b) did not respond to any contact attempts. The undersigned contacted § 87(2)(b) who provided a phone statement and confirmed his contact information. § 87(2)(b) scheduled an in-person interview for March 4, but failed to appear without notifying ahead of time. Between March 10 and April 3, the undersigned called § 87(2)(b) six times and mailed him three letters. Searches of the DOC websites for NYC and NYS confirm that neither § 87(2)(b) nor § 87(2)(b) are currently incarcerated.

As of the date of this report, neither § 87(2)(b) nor § 87(2)(b) has attempted to contact the undersigned or the CCRB. Therefore, it is recommended that **Allegations A-N** be closed as **alleged victim uncooperative**.

Squad No.: 5

Investigator:	<u>Faria Tasnim</u> Signature	<u>Inv. Faria Tasnim</u> Print Title & Name	<u>04/13/2020</u> Date
Squad Leader:	<u>Daniel Giansante</u> Signature	<u>IM Daniel Giansante</u> Print Title & Name	<u>April 15, 2020</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date